

Superior Court of the State of California
County of Orange
TENTATIVE RULINGS FOR N18
HON. Scott A. Steiner

Date: June 12, 2026

Court Reporters: Official court reporters (i.e., court reporters employed by the court) are **NOT** typically provided for law and motion matters in this department. If a party desires a record of a law and motion proceeding, it is that party's responsibility to provide a court reporter, unless the party has a fee waiver and timely requests a court reporter in advance of the hearing (see link at end of this paragraph for further information). Parties must comply with the Court's policy on the use of privately retained court reporters, which may be found at the following link: [Official Pro Tempore Reporters | Superior Court of California | County of Orange \(occourts.org\)](#). For additional information regarding court reporter availability, please visit the court's website at [Language Access Interpreter Request | Superior Court of California | County of Orange \(occourts.org\)](#).

Tentative Rulings: The court endeavors to post tentative rulings on the court's website no later than 04:30 PM the day prior to the hearing. Tentative rulings will be posted case by case on a rolling basis as they become available. Jury trials and other ongoing proceedings, however, may prevent the timely posting of tentative rulings, and a tentative ruling may not be posted in every case. Please do not call the department for tentative rulings if one has not been posted in your case. **The court will not entertain a request to continue a hearing, or any document filed after the court has posted a tentative ruling.**

Submitting on Tentative Rulings: If all counsel intend to submit on the tentative ruling and do not desire oral argument, please advise the courtroom clerk or courtroom attendant by calling (657) 622-5618. Please do not call the department unless **ALL** parties submit on the tentative ruling. If all sides submit on the tentative ruling and advise the court, the tentative ruling shall become the court's final ruling and the prevailing party shall give notice of the ruling and prepare an order for the court's signature if appropriate under California Rules of Court, rule 3.1312.

Non-Appearances: If no one appears for the hearing and the court has not been notified that all parties submit on the tentative ruling, the court shall determine whether the matter is taken off calendar or the tentative ruling becomes the final ruling. The court also may make a different order at the hearing. (Lewis v. Fletcher Jones Motor Cars, Inc. (2012) 205 Cal.App.4th 436, 442, fn. 1.)

Appearances: Department N18 conducts non-evidentiary proceedings, such as law and motion hearings, remotely by Zoom videoconference pursuant to Code of Civil Procedure section 367.75 and Orange County Local Rule 375. Any party or attorney, however, may appear in person by coming to Department N18 at the North Justice Center, located at 1275 N. Berkeley Ave., Fullerton, California. All counsel and self-represented parties appearing in-person must check in with the courtroom clerk or courtroom attendant before the designated hearing time.

All counsel and self-represented parties appearing remotely must check-in online through the court's civil video appearance website at [Civil Remote Hearings | Superior Court of California | County of Orange \(occourts.org\)](https://occourts.org/Civil-Remote-Hearings-Superior-Court-of-California-County-of-Orange) before the designated hearing time. Once the online check-in is completed, participants will be prompted to join the courtroom's Zoom hearing session. Participants will initially be directed to a virtual waiting room pending the start of their specific video hearing. Check-in instructions and instructional video are available at [Civil Remote Hearings | Superior Court of California | County of Orange \(occourts.org\)](https://occourts.org/Civil-Remote-Hearings-Superior-Court-of-California-County-of-Orange). The Court's "Appearance Procedures and Information--Civil Unlimited and Complex" and "Guidelines for Remote Appearances" also are available at [Civil Remote Hearings | Superior Court of California | County of Orange \(occourts.org\)](https://occourts.org/Civil-Remote-Hearings-Superior-Court-of-California-County-of-Orange). Those procedures and guidelines will be strictly enforced.

Public Access: The courtroom remains open for all evidentiary and non-evidentiary proceedings. Members of the media or public may obtain access to law and motion hearings in this department by either coming to the department at the designated hearing time or contacting the courtroom clerk at (657) 622-5618 to obtain login information. For remote appearances by the media or public, please contact the courtroom clerk 24 hours in advance so as not to interrupt the hearings.

NO FILMING, BROADCASTING, PHOTOGRAPHY, OR ELECTRONIC RECORDING IS PERMITTED OF THE VIDEO SESSION PURSUANT TO CALIFORNIA RULES OF COURT, RULE 1.150 AND ORANGE COUNTY SUPERIOR COURT RULE 180.

#	Case Name	Tentative
2.	2026-1545921 King Shin Ship Management Co. vs. Beyond Loan 1 LLC	Plaintiff King Shin Ship Management Co., Limited's ("Plaintiff") application for right to attach order and order for issuance of writ of attachment after hearing, against defendant Beyond Liquidity, LLC ("Defendant"), is denied. <u>Procedural Issues</u> The Court declines to consider the new evidence Plaintiff submitted on reply. (See ROA 94.) Absent exceptional circumstances, new evidence is generally not allowed on reply, because of the "unfairness to the opponent of not being able to address the new matter raised in a reply." (<i>Maleti v. Wickers</i> (2022) 82 Cal.App.5th 181, 227; see also Weil & Brown, Cal. Practice Guide: Civil Procedure Before Trial (The Rutter Group 2026) ¶ 9:106.1.) Additionally, the new evidence has not been sufficiently authenticated. (Evid. Code, § 1400.) The Court declines to rule on Defendant's evidentiary objections (ROA 92), because they are not material to the disposition of the application. <u>Merits</u>

		Plaintiff moves, under CCP section 483.010, for the issuance of a writ of attachment against Defendant in the amount of \$100,000.00. Defendant proffers evidence that Debenture No. 2 includes an arbitration provision, which provides, in relevant part, that “any claim, dispute, or controversy of whatever nature arising out of or relating to this Debenture, including, without limitation, any action or claim based on tort, contract, or statute . . . shall be resolved by final and binding arbitration ... before a single arbitrator ... selected from and administered by JAMS Inc.” (ROA 85—Ye Decl. at ¶ 3, Exh. 1 [Debenture No. 2 at § 15].) Additionally, Defendant has filed a motion to compel arbitration and to stay proceedings. (ROA 67.) Defendant contends Plaintiff has failed to meet the standard required for obtaining provisional relief when a dispute is subject to arbitration. CCP section 1281.8 provides, in relevant part, that: “A party to an arbitration agreement may file in the court in the county in which an arbitration proceeding is pending, <i>or if an arbitration proceeding has not commenced</i>, in any proper court, an application for a provisional remedy in connection with an arbitrable controversy, <i>but only upon the ground that the award to which the applicant may be entitled may be rendered ineffectual without provisional relief</i>.” (Code Civ. Proc., § 1281.8, subd. (a), emphasis added.) There is no dispute that Defendant is in the process of selling certain real property in Texas and intends to use the proceeds to repay its creditors. Plaintiff has not shown that the arbitration award to which it may be entitled would be “rendered ineffectual” without provisional relief. The application is denied without prejudice to Plaintiff seeking renewal if such facts can be stated. Defendant shall give notice of the ruling.
3.	2021-1231301 Gulham vs. Younge	The Court grants Cross-Defendant Yama Gulham’s unopposed Motion for judgment on the pleadings as to the third cause of action for malicious prosecution in Cross-Complainants Michael A. Younge and Amany Simmonds’ Cross-Complaint. Younge and Simmonds have 15 days leave to amend. Younge and Simmonds take issue with the lack of any meet and confer effort. But the statute contains no provision for compelling compliance with the meet and confer requirement, unlike the meet and confer requirement in the discovery process. Additionally, the failure to sufficiently meet and confer is not grounds to grant a motion for judgment on the pleadings. (CCP §439(a)(4). “A determination by the court that the meet and confer process was insufficient shall not be grounds to grant or deny the motion for

judgment on the pleadings.”) The Court admonishes Gulham to comply with the applicable meet and confer rules.

The Court notes that a First Amended Cross-Complaint was filed on 3/6/23. (ROA 97.) But this was filed while an Anti-SLAPP motion was pending. A plaintiff (or cross-complaint) is not permitted to amend the complaint before the hearing on the anti-SLAPP motion. (*Salma v. Capon* (2008) 161 Cal.App.4th 1275, 1280.) Thus, the First Amended Cross-Complaint is improper and stricken.

Moving to the merits, a motion by defendant (or cross-defendant) be made on the grounds that the complaint (or any cause of action therein) “does not state facts sufficient to constitute a cause of action against that defendant.” (CCP § 438(c).)

The Cross-Complaint alleges in relevant part that the Complaint in this case was maliciously prosecuted.

“To establish a cause of action for the malicious prosecution of a civil proceeding, a plaintiff must plead and prove that the prior action (1) was commenced by or at the direction of the defendant and was pursued to a legal termination in his, plaintiff’s, favor; (2) was brought without probable cause; and (3) was initiated with malice.” (*Bertero v. National General Corp.* (1974) 13 Cal.3d 43, 50, internal citations omitted.) “A claim for malicious prosecution need not be addressed to an entire lawsuit; it may ... be based upon only some of the causes of action alleged in the underlying lawsuit.” (*Franklin Mint Co. v. Manatt, Phelps & Phillips, LLP* (2010) 184 Cal.App.4th 313, 333.)

“[F]avorable termination requires favorable resolution of the underlying action in its entirety, not merely a single cause of action. ‘[I]f the defendant in the underlying action prevails on all of the plaintiff’s claims, he or she may successfully sue for malicious prosecution if any one of those claims was subjectively malicious and objectively unreasonable. But if the underlying plaintiff succeeds on any of his or her claims, the favorable termination requirement is unsatisfied and the malicious prosecution action cannot be maintained.’” (*Citizens of Humanity, LLC v. Ramirez* (2021) 63 Cal.App.5th 117, 128, internal citation omitted; *Ray v. First Federal Bank* (1998) 61 Cal.App.4th 315, 319, favorable termination may depend on appellate proceedings after initial decision in the trial court has been recognized in other cases; see e.g. *Daon Corp. v. Place Homeowners’ Ass’n* (1989) 207 Cal.App.3d 1449, 1456—order dismissing cross-complaint against third party not appealable “final judgment” because third party still remained in action in same and different capacities.)

		Here, the Cross-Complaint fails to allege all elements of the malicious prosecution claim. Gulham is ordered to serve notice.
5.	2025-1484192 Mucatel vs. Arbor Palms of Anaheim	Plaintiff Patricia Wallick’s unopposed motion to be appointed personal representative for Decedent Victor Mucatel is granted. Code Civ. Proc., § 377.31 states: “On motion after the death of a person who commenced an action or proceeding, the court shall allow a pending action or proceeding that does not abate to be continued by the decedent’s personal representative or, if none, but the decedent’s successor-in-interest.” Here, Plaintiff submitted a declaration, confirming that she is the deceased plaintiff’s successor-interest, which complies with Code Civ. Proc., § 377.32. She states that the only other heirs at law and successors in interest aside from herself are her siblings Daniel Mucatel, Marc Mucatel and Joseph Mucatel (also Plaintiffs). (Wallick Decl., ¶¶ 2-3, Ex. A.) Plaintiff included consents signed by her siblings for her to be appointed representative of Decedent’s claims. Plaintiff shall give notice.
6.	2023-1339526 Huerta vs. Cedar Fair, LP	The motion of plaintiff Melanee Huerta, by and through her guardian ad litem, Wendy Mariona, substituting herself in as plaintiff in place of her guardian ad litem now that she has reached the age of majority is granted. Code Civ. Proc. §372(a)(1); <u>Facts</u> When this action was filed Plaintiff was a minor and a guardian ad litem was appointed. [Complaint (ROA #2), ¶ 3; second amended complaint “SAC”), ¶ 3; Application and Order filed 8/7/23 (ROA #8; Kruse Decl. (ROA # 136), ¶ 3.] Plaintiff was born on 10/11/2006. [Application and Order, ¶ 4.a; Kruse Decl., ¶ 4.] She is therefore now over 18. [<i>Id.</i>] <u>Discussion</u> Code of Civil Procedure section 372 provides that a minor must appear in an action through a guardian ad litem. Code Civ. Proc. §372(a)(1) (“When a minor, a person who lacks legal capacity to make decisions . . .). Once the minor reaches her majority, she no longer lacks legal capacity. As a result, the statutory authorization for appointment of

		a guardian ad litem expires and the appointment must terminate. Code Civ. Proc. §372(a)(1); <i>Chui v. Chui</i> (2022) 86 Cal.App.5th 929, 938–939 (under Probate Code: “Because Jacqueline and Michael are adults and there is no other ground for continuing Chen’s appointment as their guardian ad litem, the appointment must terminate.”). Plaintiff has reached her majority; that is, she is no longer a minor. Fam. Code, § 6500. Accordingly, her unopposed motion to substitute plaintiff in this action is granted.
7.	2021-1222421 Richards vs. LoanDepot, Inc.	On the motion of defendants loanDepot, Inc., loanDepot.com, LLC, and LD Holdings Group, LLC to correct the order taxing their costs under Code of Civil Procedure section 473(d), the court is inclined to reconsider the original order taxing the entirety of the expert witness costs sought by Defendants on the ground they are not recoverable under Code of Civil Procedure section 1033.5. [ROA #1401, 1393.] The court will hear from Plaintiff Tamara Richard’s counsel first, however, whether it disputes the validity or good faith of the 998-offer proffered by Defendants. <u>Facts</u> Jury trial of this action began on 1/24/25. Prior to that, on December 17, 2024, the Court granted nonsuit as to Plaintiff’s Retaliation Claim under Labor Code section 1102.5. (See ROA No. 1069.) This left the second, fifth, sixth, and tenth causes of action to be tried. Plaintiff did not pursue the tenth cause of action. After trial, the jury found that no harassment had taken place and found for Defendants on the remaining causes of action. [2/7/25 Minute Order (ROA #1214); Special Verdict Form (ROA #1218); Jury Polling Sheet (ROA #1271).] Judgment was entered on 3/6/25. [ROA # 1227.] Notice of entry was served electronically and by email on 4/2/25. [ROA # 1233.] Plaintiff has appealed from this judgment. [ROA #1240.] Defendants filed and emailed their initial memorandum of costs, limited to costs incurred prior to nonsuit on the non-FEHA retaliation claim, on 4/17/25. [ROA # 1246.] Plaintiff filed her motion to strike or tax costs on 5/7/25. [ROA # 1263.] The court did

not strike the memorandum of costs but did tax costs. [2/2/26 Minute Order (ROA #1393).] Plaintiff did not appeal from this order.

Defendants also filed a motion for attorneys' fees and costs on 6/2/25. [ROA # 1289.] This motion sought fees incurred solely on the FEHA claim that went to trial after the nonsuit and includes a separate memorandum of costs for costs incurred solely in connection with Plaintiff's remaining FEHA claim after nonsuit was granted on Plaintiff's section 1102.5 whistleblower retaliation claim. [David Decl. (ROA ## 1209, 1283), Ex. N.] The court granting the motion, awarding Defendants fees but not in the total amount they requested. [2/3/26 Minute Order (ROA #1395).] Plaintiff has appealed from this order. [ROA #1405.]

In her motion to strike or tax costs basically argued that Defendants were not entitled to recovery costs under FEHA because Plaintiff's case was not frivolous. Secondly, she argued that even if Defendants were entitled to recover certain costs some claimed were excessive or otherwise not recoverable.

Specifically, as to the \$116,772.93 in expert witness fees claimed by Defendants, Plaintiff argued:

As stated above, in the event that the Court determines that Plaintiff's action was frivolous Defendant may be entitled to costs of some expert fees. Here, Defendant has identified numerous experts of which many were not identified as witnesses to the litigation nor do their fees appear to be reasonable. The following expert witnesses identified in line 8(b) either appeared at trial or were identified for the litigation: Janey Seymour, Judy Ho, Paul Reardon, Eva Gentile, and NERA (Elizabeth Newlon), with a total cost of \$35,123.75. However the remaining expert witnesses identified by Defendants were never even deposed nor identified as witnesses, and in some instances their charges are completely unreasonable, such as "SEDA" and Greenfield charging \$25,000 and \$10,000 respectively for 1 hour of work each. The witnesses that should be taxed are as follows: Investigative Research, Mark Kalish, Ellen Stein, IMS Legal, SEDA, Greenfield, Jason Koontz, and Upstream Intelligence for a total of \$81,649.18.

[Motion MPA (ROA #1263) at 7-8.]

Defendants' opposition to Plaintiffs' motion to strike or tax costs was essentially that none of the costs claimed were incurred on the FEHA claim but only on the Labor Code section 1102.5

whistleblower claim, so Defendants were entitled to recover the costs under Code of Civil Procedure sections 1032 and 1033.5 as prevailing party without a finding the claims were frivolous. [Opp. (ROA #1323) at 1-2, 5.]

Defendants did not provide any other information as to the basis for recovery of expert witness fees.

The court understood Plaintiff's argument to be that if the court found her FEHA claims frivolous expert fees are recoverable, but she argues for a less amount than that sought. Govt. Code §12965(b). Otherwise, they are not recoverable under Code of Civil Procedure section 1033.5(b)(1).

Plaintiff's motion to strike or tax costs and Defendants' motion for attorneys' fees and costs under FEHA were heard together and involved a number of moving parts and issues. As to the motion to tax, the issue of allocation was discussed but expert witness fees as costs was not specifically discussed.

The court took both motions under submission.

In its final order on the motion to tax, the court found, as argued by Defendants, that the costs sought to be recovered were largely incurred on whistleblower claims versus FEHA claims. Under this reasoning, though, the expert witness fees were not recoverable on the record presented because while they would be recoverable under FEHA were Plaintiff's FEHA claims frivolous, they were not recoverable under Code of Civil Procedure section 1033.5.

Accordingly, the court's order taxed the expert witness fees in their entirety - \$116,772.93. [2/2/26 order at 3-4.]

Apparently, however, Defendants had served a 998 offer on Plaintiff prior to trial, which she did not accept, that was not part of the court's record. [David Decl. (ROA #1399), ¶ 2 and Ex. A.

Legal Standard

Under Code of Civil Procedure section § 473(d), on its own motion or the motion of a party, the court may correct clerical mistakes in its judgment or order and may set aside any void judgment or order. Code Civ. Proc. § 473(d). The court also has inherent power to correct its judgment. *In re Tobias* (1989) 208 Cal. App. 3d 1031, 1034 (noting inherent power to correct clerical error in judgment). *Highland Springs Conference & Training Center v. City of Banning* (2016) 244 Cal.App.4th 267, 280.

“A clerical error in the judgment includes inadvertent errors made by the court ‘which cannot reasonably be attributed to the exercise of judicial consideration or discretion.’ [Citations.] ‘Clerical error ... is to be distinguished from judicial error which cannot be corrected by amendment. The distinction between clerical error and judicial error is “whether the error was made in rendering the judgment, or in recording the judgment rendered.” [Citation.] Any attempt by a court, under the guise of correcting clerical error, to “revise its deliberately exercised judicial discretion” is not permitted. [Citation.]’ [Citation.] A judicial error is the deliberate result of judicial reasoning and determination.” *Conservatorship of Tobias* (1989) 208 Cal.App.3d 1031, 1034–1035. “The term “clerical error” covers all errors, mistakes, or omissions which are not the result of the exercise of the judicial function. If an error, mistake, or omission is the result of inadvertence, but for which a different judgment would have been rendered, the error is clerical and the judgment may be corrected’ “ *Id.* at 1035.

Here, the court intended to enter the order it did on 2/3/26 – there was no processing error that resulted in a different order than that intended being entered.

Defendants point to a broad statement of clerical error in *George v. Bekins Van & Storage Co.* (1948) 83 Cal.App.2d 478: “If an error, mistake, or omission is the result of inadvertence, but for which a different judgment would have been rendered, the error is clerical and the judgment may be corrected to correspond with what it would have been but for the inadvertence.” *Id.* at 481. There, the trial court amended a judgment awarding the plaintiff damages against one defendant to include the statement that the remaining defendants were entitled to judgment in their favor. The court of appeal found this to be correction of a clerical error such that the deadline to file an appeal still ran from entry of the original order. [*Id.*]

Not only is the amendment to judgment approved a correction of a “clerical error” in *George v. Bekins Van & Storage Co.* very different from that proposed by Defendants here, it was expressly dismissed as dicta in *Dakota Payphone, LLC v. Alcaraz* (2011) 192 Cal.App.4th 493, 505–506. *Dakota Payphone, LLC v. Alcaraz* (2011) 192 Cal.App.4th 493, 505–506.

In short, there was no clerical error and Defendants are not entitled to relief on that basis.

The court may, nonetheless, reconsider its prior order.

Generally, a motion for reconsideration must be filed within 10 days of service on him of notice of entry of the order in question. Code Civ. Proc. § 1008(a). Defendants' instant motion was filed within this time frame.

A motion for reconsideration made by a party must be based on new or different facts, circumstances, or law than those before the court at the time of the original ruling. Code Civ. Proc. § 1008(a). The motion must also be accompanied by an affidavit from the moving party that states: (1) what application was previously made; (2) when and to what judge; (3) what order was made; and (4) what new or different facts, circumstances or law are claimed to be shown. Code Civ. Proc. § 1008(a). A party seeking reconsideration also must provide a satisfactory explanation for the failure to produce the evidence at an earlier time. *New York Times Co. v. Superior Court* (2005) 135 Cal.App.4th 206, 213.

The burden under section 1008 "is comparable to that of a party seeking a new trial on the ground of newly discovered evidence: the information must be such that the moving party could not, with reasonable diligence, have discovered or produced it at the trial." *New York Times Co. v. Superior Court, supra*, 135 Cal.App.4th at 212–213. The legislative intent was to restrict motions for reconsideration to circumstances where a party offers the court some fact or circumstance not previously considered, and some valid reason for not offering it earlier. *Gilberd v. AC Transit* (1995) 32 Cal. App. 4th 1494, 1500. A party seeking reconsideration of a prior order based on "new or different facts, circumstances or law" must provide a satisfactory explanation for failing to present the information at the first hearing; i.e., a showing of reasonable diligence. *Garcia v. Hejmadi* (1997) 58 Cal. App. 4th 674, 690. The court cannot consider matters presented at the earlier hearing. Code Civ. Proc. §1008(f). Reconsideration cannot be granted based on claims the court misinterpreted the law in its initial ruling. *Gilberd v. AC Transit, supra*, 32 Cal. App. 4th at 1500.

Apart from a parties' motion, if the court itself "determines that there has been a change of law that warrants it to reconsider a prior order it entered, it may do so on its own motion and enter a different order." Code Civ. Proc. § 1008(c). Further, it should be noted that the court has the inherent power to reconsider its ruling if it believes it to be in error. *Le Francios v. Goel* (2005) 35 Cal.4th 1094, 1108; *Marriage of Barthold* (2008) 158 Cal.App.4th 1301, 1307-1308.

Here, the different fact is the 998 offer of which the court was not aware.

		Defendants did not bring it to the court’s attention because, as they describe it, Plaintiff “did not argue that the expert witness fees included in the Memorandum of Costs were improper under California Code of Civil Procedure Section 1033.5.” It is correct that Plaintiff did not expressly argue this. As noted above, however, the court took her to be implicitly arguing this by her statement that “<i>in the event</i>” the court found her claims frivolous Defendants could recover their expert witness fees. In any event, Defendants did not think they had to justify recovery of expert witness fees in the absence FEHA’s recovery provision applying. In the normal course, the court would have posted a tentative ruling that would have alerted Defendants to this issue, which they could have then addressed at the hearing. But this time, given the number of issues raised by the fee motion and the motion to strike or tax costs, not tentative ruling was posted. Nor did the specific issue of expert witness fees come up at the hearing. The lack of notice to Defendants of the conclusions the court was drawing from the record is a valid basis to reconsider the order taxing all their expert witness fees. <i>Marriage of Barthold</i> (2008) 158 Cal.App.4th 1301, 1307-1308 (finding court has inherent authority to reconsider final, post judgment order, as well as interim order, on its own motion even when that exercise is triggered by improper motion of party).
8.	2026-1555405 SJO Investments, LLC vs. Kipp	Defendant Corwin James Kipp’s Motion to expunge the lis pendens recorded on March 24, 2026 by Plaintiff SJO Investments LLC is granted. <u>Request for Judicial Notice</u> Plaintiff’s request for judicial notice filed in opposition of Exhibits A through E, all recorded documents relating to the real property located at 26611 Via La Jolla, San Juan Capistrano, CA 92675. <u>Legal Standard</u> Recordation of a lis pendens is permitted in any action by a “claimant” who has a “real property claim.” (CCP § 405.1) A “real property claim” is any cause of action which, if meritorious, would affect: — title to, or the right to possession of, specific real property; or

— the use of an easement identified in the pleading (other than an easement obtained pursuant to statute by any regulated public utility).

(CCP § 405.4)

Because of the potential for abuse and injustice to the property owner, the Legislature has provided statutory procedures (CCP § 405.30 et seq.) by which a lis pendens may be removed (“expunged”). (See *Shah v. McMahon* (2007) 148 Cal.App.4th 526, 529—lis pendens procedure “provides a means by which a court may dispose of meritless real estate claims at the preliminary stage of a case”.)

A lis pendens will be expunged without a bond if the court finds either:

- Plaintiff’s complaint does not contain a “real property claim” (i.e., one affecting title or possession of specific real property or use of an easement, etc.; CCP § 405.4). (CCP § 405.31.)
- Or, the claimant “has not established by a preponderance of the evidence the probable validity of the real property claim.” (CCP § 405.32.)

A motion to expunge may be filed “at any time” after the lis pendens is recorded. (CCP § 405.30.)

Unlike most other motions, the burden of proof is on the party opposing the motion to expunge. The lis pendens claimant (plaintiff) bears the burden of establishing the existence of a “real property claim” and that it is “probably valid.” (CCP § 405.32.) Plaintiff thus has the burden of producing sufficient evidence to support a finding that plaintiff will “probably” win at trial.

Merits

In the quiet title and specific performance claims in the Complaint, Plaintiff SJO alleges that there is an enforceable Purchase Agreement for the real property located at 26611 Via La Jolla, San Juan Capistrano, CA 92675. The sales price is \$2,050,000. (Compl., ¶¶1-12, Ex. A.) Plaintiff alleges that after signing the Purchase Agreement with Mr. Kipp on March 27, 2025, escrow informed Plaintiff that Defendant Kipp was married and that Defendant Badilla had not signed an interspousal transfer deed. Defendant Kipp represented that he had a settlement agreement relating to the marital dissolution; however, the divorce had not yet been finalized. (Compl., ¶15.)

Defendant was unable to obtain his wife’s signature, escrow never closed, and Plaintiff filed this lawsuit.

As an initial matter, Plaintiff provides evidence on reply that it “assigned” the real estate at issue in this case to a third-party Credo

American Properties LLC, in an attempt to show damages. (Oots Decl., ¶3, Ex. B.)

Plaintiff argues under a heading titled “SJO’s Assignment of the Purchase Agreement Further Evidences that a Damages Award would be Inadequate” that “SJO has assigned the real estate purchase agreement (Declaration of Scott Oots in support of Opp., ¶ 3, Ex. B)...” (Opp., p. 9:1-7.)

On reply, Defendant argues that Plaintiff lacks standing to enforce a quiet title action as a result of the Assignment.

In response, Plaintiff submitted essentially a sur-reply arguing that the Assignment is for contractual interests in the Property, but not the right to sue or Plaintiff’s interests in the property, despite the assertion in the opposition that it assigned the *Purchase Agreement*.

Thus, Plaintiff appears to lack standing to bring the real property claims for specific performance and quiet title.

But even if Plaintiff had standing to sue, the Court finds that Plaintiff has not met its burden to show by a preponderance of the evidence the probable validity of the real property claim.

Plaintiff argues in opposition that the Property was Mr. Kipp’s separate property, as he represented during negotiations; therefore, the signature of his wife (to whom he was separated) did not require her signature. (See e.g. *Andrade Dev. Co. v. Martin* (1982) 138 Cal.App.3d 330, no specific performance or damages were recoverable as to any part of the effort to dispose of the community real property where it was clear that the property in question was community property and the wife did not consent.)

Plaintiff points to the grant deeds to show that the property must have been purchased with separate property funds or inherited by his family. (Opp., p. 10:11-14.) This is speculation.

Plaintiff also points to an email from Mr. Kipp to the Title Insurance company indicating that his wife’s signature was not needed because he bought the home with money from an account that predated his marriage. (Zazzera Decl., Ex. B.) This is despite the fact that Mr. Kipp took purchased the Property in September 2022, taking title as “Corwin J. Kipp, a married man.”

Mr. Kipp testified that he and Susanne paid cash for the Property. During their marriage, Susanne took title to other property in her own name. (Kipp Decl., ¶4, Ex. 1.)

It is not clear to this Court whether the Property was ever adjudicated as separate property by a court, whether the parties made an agreement, or whether the Property is yet to be characterized.

Nevertheless, even assuming that no other signature was required for the Purchase Agreement to be enforceable, Plaintiff has not shown that it complied with its end of the bargain.

Specific performance requires a showing that plaintiff fully and fairly performed all conditions precedent on his or her part according to the obligation. If the plaintiff's failure is only partial, immaterial, or capable of being fully compensated, specific performance may be compelled on full compensation being made by the plaintiff for the default. (Civ. Code, § 3392.)

Here, the Purchase Agreement required Plaintiff SJO to put the \$2,050,000 into escrow and close escrow in 17 days without Badilla signing an interspousal grant deed. Plaintiff has not shown that it complied. Rather, Plaintiff was unable to obtain title insurance and thus declared the deal dead. (Kipp Decl. ¶13). In the contract, time was declared of the essence. Moreover, Plaintiff cites to no clause that indicates a condition precedent involving title insurance.

Further, specific performance of a real property contract is only appropriate where damages are insufficient to compensate one party for another's refusal to perform. (*See BD Inns v. Pooley* (1990) 218 Cal.App.3d 289.)

A complaint to quiet title must be verified. (Code Civ. Proc., § 761.020.) A quiet title action is also an equitable cause of action and will not be successful if there is an adequate remedy at law. (See e.g. *Hovannisian v. City of Fresno* (2024) 107 Cal.App.5th 833.)

The Court notes that pursuant to the Assignment Agreement, Plaintiff would be entitled to a \$210,000 assignment fee. (Oots Decl., ¶¶3-4). This belies any argument that damages are an inadequate remedy. (See also Compl., ¶9.) Plaintiff's citation to *Real Estate Analytics, LLC v. Vallas* (2008) 160 Cal.App.4th 463 is also not persuasive. The property at issue in that case was a 14.13-acre property containing a mobile home park with 147 individual mobile homes and numerous amenities, including a pool, playground, laundry facilities, and a long winding street. (*Id.* at p. 467.) The property here is a single-family residence. Plaintiff did not intend to reside at the property or make changes to the property; rather, Plaintiff assigned it within 11 days of signing the Purchase Contract with Defendant Kipp.

		<u>Attorney's Fees</u> Attorney's fees are warranted. A prevailing party on a motion to expunge a lis pendens is entitled to recover reasonable attorney's fees and costs under CCP § 405.38, unless the judge finds that the other party acted with substantial justification or that other circumstances make the imposition of fees unjust. (<i>Hunting World, Inc. v Superior Court</i> (1994) 22 Cal.App.4th 67, 74; <i>Blackburn v Charnley</i> (2004) 117 Cal.App.4th 758, 768 (award upheld).) A judge is not authorized to award attorney's fees against the losing party's attorney rather than the party. (<i>Doyle v Superior Court</i> (1991) 226 Cal.App.3d 1355, 1359.) Plaintiff is ordered to pay Defense Counsel \$17,800 in reasonable attorney's fees for time spent on this Motion. Defendant shall serve notice of this Order.
9.	2024-1424513 Brown vs. The Kroger Co	Defendant Ralphs Grocery Co. dba Ralphs' motion for summary adjudication as to the Complaint of Plaintiff Colton Brown is granted. Defendant's objection to the declaration of Bruse Lujan is overruled. Defendant's objection to the entire declaration of Mark Burns is overruled. Defendant's objection No. 1 to the Burns declaration is overruled and its objection Nos. 2-8 are sustained. "[F]rom commencement to conclusion, the party moving for summary judgment bears the burden of persuasion that there is no triable issue of material fact and that he is entitled to judgment as a matter of law." (<i>Aguilar v. Atlantic Richfield Co.</i> (2001) 25 Cal.4th 826, 850.) "A prima facie showing is one that is sufficient to support the position of the party in question." (<i>Id.</i> at p. 851.) A defendant moving for summary judgment satisfies his or her initial burden by showing that one or more elements of the cause of action cannot be established or that there is a complete defense to the cause of action. (Code Civ. Proc., § 437c, subd. (p)(2).) The scope of this burden is determined by the allegations of the plaintiff's complaint. (<i>FPI Development v. Nakashima</i> (1991) 231 Cal.App.3d 367, 381-382 [pleadings serve as the outer measure of materiality in a summary judgment motion]; <i>580 Folsom Associates v. Prometheus Development Co.</i> (1990) 223 Cal.App.3d 1, 18-19 [defendant only required to defeat allegations reasonably contained in the complaint].) A cause of action cannot be established if the undisputed facts presented by the defendant prove the contrary of the plaintiff's allegations as a matter of law. (<i>Brantley v. Pisaro</i> (1996) 42 Cal.App.4th 1591, 1597.) Alternatively, a moving defendant can

show that a cause of action cannot be established by submitting evidence, such as discovery admissions and responses, that plaintiff does not have and cannot reasonably obtain evidence to establish an essential element of his cause of action. (*Aguilar v. Atlantic Richfield Co.*, *supra*, 25 Cal.4th at pp. 854-855; *Union Bank v. Superior Court* (1995) 31 Cal.App.4th 573, 590 [finding moving defendant may show plaintiff's lack of evidence by factually devoid discovery responses after plaintiff has had adequate opportunity for discovery]; see *Scheiding v. Dinwiddie Constr. Co.* (1999) 69 Cal.App.4th 64, 80-81 [finding *Union Bank* rule only applies where discovery requests are broad enough to elicit all such information].) Once a defendant meets its prima facie showing, the burden shifts to the plaintiff to show by reference to specific facts the existence of a triable issue as to that affirmative defense or cause of action. (*Aguilar v. Atlantic Richfield Co.*, *supra*, 25 Cal.4th at p. 850.)

Plaintiff's separate statement

In his separate statement, Plaintiff does not clearly state whether Defendant's facts are disputed or undisputed pursuant to Code Civ. Proc., § 437c(b)(3) and CRC, Rule 3.1350.

The court in *Thatcher v. Lucky Stores, Inc.* (2000) 79 Cal.App.4th 1081, 1086 notes that "subdivision (b) of section 437c allows the court, in its discretion, to grant summary judgment if the opposing party fails to file a proper separate statement," so long as it is determined that the moving party meets its initial burden of proof.

Here, the Court finds not only that Plaintiff failed to file a proper separate statement; but he additionally fails to demonstrate the existence of any triable issues of material fact as set forth below.

Merits

The elements of negligence are: "(1) a legal duty to use due care; (2) a breach of such legal duty; [and] (3) the breach as the proximate or legal cause of the resulting injury." (*Ladd v. County of San Mateo* (1996) 12 Cal.4th 913, 917.)

The elements of premises liability are: (1) Defendant owned/leased/occupied/controlled the property, (2) Defendant was negligent in the use or maintenance of the property, (3) Cross-Complainant was harmed, and (4) Defendant's negligence was a substantial factor in causing Cross-Complainant's harm. (CACI 1000; *Hall v. Aurora Loan Services, LLC* (2013) 215 Cal.App.4th 1134, 1139. ("The same concepts of duty applicable to general negligence claims apply to premises liability claims.")) "The existence and scope of duty are legal questions for the court."

(*Annocki v. Peterson Enterprises, LLC* (2014) 232 Cal.App.4th 32, 36 [citing *Merrill v. Navegar, Inc.* (2001) 26 Cal.4th 465, 477].)

It is well established in California that although a store owner is not an insurer of the safety of its patrons, the owner does owe them a duty to exercise reasonable care in keeping the premises reasonably safe. (*Ortega v. Kmart Corp.* (2001) 26 Cal.4th 1200, 1205.)

In a case like this, Plaintiff has the burden of proving that Ralphs had actual or constructive knowledge of a dangerous condition (here, the water on the floor) and time to correct it, or that Ralphs was able, by the exercise of ordinary care, to discover the condition. (*Ortega v. Kmart Corp.* (2001) 26 Cal.4th 1200, 1206; *Hatfield v. Levy Brothers* (1941) 18 Cal.2d 798, 806.) “Because the owner is not the insurer of the visitor’s personal safety [citation], the owner’s actual or constructive knowledge of the dangerous condition is a key to establishing its liability.” (*Ortega, supra* at 1206; see also *Moore v. Wal-Mart Stores, Inc.* (2003) 111 Cal.App.4th 472, 476.)

Defendant here argues that there is no evidence that Defendant had actual or constructive notice of the dangerous condition. It notes that its employee, Ryan Wyant swept the floor where the incident occurred less than two minutes prior to Plaintiff’s fall. (UMF 6-8.)

The video lodged as Defendant’s Ex. B (and Plaintiff’s Ex. B and F) shows Wyant sweeping the area at 11:18:47 and Plaintiff falling at 11:20:20.

In opposition, Plaintiff contends that the sweep of the floor was not a proper sweep. The evidence does not support this conclusion.

The evidence establishes that Defendant’s employee swept the floor where Plaintiff fell less than two minutes prior to the fall. Specifically, the video shows that the employee – Wyant - walked over the area, following the sweeper and did not fall at 11:18:47. In addition, a person walked over the area immediately before the sweep at 11:18:39 and did not fall. (Defendant’s lodged Ex. B.)

After the sweep, four additional customers walked over the area and did not fall. (*Id.*) Finally, Plaintiff is seen falling at 11:20:20. (*Id.*)

Therefore, Court finds that there is no triable issue of fact as to whether the sweep was defective, leaving a puddle of water on the floor, resulting in Plaintiff’s fall (i.e., that Defendant created the dangerous condition and/or had actual notice of the dangerous condition rendering it liable for negligence and premises liability).

Furthermore, the evidence does not support that Defendant had constructive notice of water on the floor where Plaintiff fell.

In *Girvetz v. Boys' Market* (1949) 91 Cal.App.2d 827, the plaintiff slipped on a banana peel. The Court of Appeal affirmed the trial court's grant of judgment notwithstanding the verdict as there was no substantial evidence to support a finding that the defendant was negligent. The court found that it was significant that the only evidence as to how long the dangerous condition existed was testimony from a customer stating that she saw the banana for a minute and a half before the accident. (*Id.* at 828.)

The court held that "the circumstances are such as to afford no basis for an inference that the condition was created by the proprietor or his employees," and therefore, the "question is whether, in the circumstances, it can be inferred that the dangerous condition had existed for such a length of time as to justify charging the defendant with lack of ordinary care in failing to discover and remedy it before the plaintiff was injured." (*Id.* at 831.)

In *Ortega v. Kmart Corp.*, (2001) 26 Cal.4th 1200, the plaintiff slipped on a puddle of milk in a grocery store. The California Supreme Court affirmed the jury verdict in favor of the plaintiff, in light of his evidence that an inspection had not been made within a reasonable time. The court held that although a plaintiff has the burden to prove the owner had actual or constructive notice of the defect in sufficient time to correct it, evidence of defendant's failure to inspect the premises within a reasonable period of time was sufficient to allow an inference that the milk was on the floor long enough to give defendant the opportunity to discover and remedy it, which was a question of fact for the jury. (See *Id.* at 1203.)

As noted above, video evidence shows that the floor where Plaintiff fell was swept by an employee of Defendant at 11:18:47, and Plaintiff fell less than two minutes later at 11:20:20. (Defendant's lodged Ex. B.)

This time lapse of approximately 1 minute and 40 seconds is not sufficient to impart constructive notice of any potentially dangerous condition on the part of Defendant pursuant to *Ortega*.

The motion for summary judgment is thus granted as Defendant establishes that Plaintiff lacks evidence to support the duty element of his claims. Plaintiff fails to meet his burden of proof to show that Defendant had actual or constructive notice of the dangerous condition in sufficient time to correct it.

		Defendant shall give notice.
10.	2024-1376456 Khorramian vs. BMW of North America, LLC	Defendant BMW of North America, LLC's motion for summary judgment on plaintiff Reza Khorramian complaint is denied. Defendant's motion for summary adjudication is granted in part and denied in part. The motion is granted as to Plaintiff's fifth cause of action for violation of the Consumer Legal Remedies Act; the motion is otherwise denied. <u>Facts</u> This is essentially a Song-Beverly action. Plaintiff asserts five causes of action against Defendant BMW: (1) breach of express warranty in violation of Song-Beverly; (2) breach of implied warranty in violation of Song-Beverly; (3) Violation of Song Beverly, Civil Code § 1793.2(b); (4) violation of the Magnuson-Moss Warranty Act; and (5) violation of the Consumer Legal Remedies Act. Plaintiff alleges he purchased the BMW vehicle in issue – he paid the down payment and is making the monthly payments. He is a “Buyer” under the Song Beverly Act. [Complaint, ¶¶ 12, 23.] He also alleges the vehicle is a “consumer good” acquired primarily for family or household purposes and Plaintiff has used the Vehicle primarily for those purposes. [<i>Id.</i>, ¶ 22.] <u>Legal Standard</u> A “party moving for summary judgment bears an initial burden of production to make a prima facie showing of the nonexistence of any triable issue of material fact . . .” <i>Aguilar v. Atlantic Richfield Co.</i> (2001) 25 Cal.4th 826, 850. “A prima facie showing is one that is sufficient to support the position of the party in question.” <i>Id.</i> at 851. A defendant seeking summary judgment meets the burden of showing that a cause of action has no merit by showing that one or more elements of the cause of action cannot be established or that there is a complete defense to that cause of action. Code Civ. Proc. § 437c(p)(2); <i>Villacres v. ABM Industries, Inc.</i> (2010) 189 Cal.App.4th 562, 575. The scope of this burden is determined by the allegations of the plaintiff's complaint. <i>FPI Development, Inc. v. Nakashima</i> (1991) 231 Cal.App.3d 367, 381–382 (pleadings serve as the outer measure of materiality in a summary judgment motion); <i>580 Folsom Associates v. Prometheus Development Co.</i> (1990) 223 Cal.App.3d 1, 18–19 (respondent only required to defeat allegations reasonably contained in the complaint). A cause of action “cannot be established” if the undisputed facts presented by the defendant prove the contrary of the plaintiff's allegations as a matter of law. <i>Brantley v. Pisaro</i> (1996) 42 Cal.App.4th 1591, 1597.

Once the defendant's burden is met, the burden shifts to the plaintiff to show that a triable issue of fact exists as to that cause of action. *Id.* In making this determination, the moving party's affidavits are strictly construed while those of the opposing party are liberally construed. *Villacres v. ABM Industries, Inc.*, 189 Cal.App.4th at 575. The facts alleged in the evidence of the party opposing summary judgment and the reasonable inferences therefrom must be accepted as true. *Id.*

A party may move for summary adjudication as to one or more causes of action within an action, one or more affirmative defenses, one or more claims for damages, or one or more issues of duty, if that party contends that the cause of action has no merit or that there is no affirmative defense thereto, or that there is no merit to an affirmative defense as to any cause of action, or both, or that there is no merit to a claim for damages, as specified in Section 3294 of the Civil Code, or that one or more defendants either owed or did not owe a duty to the plaintiff. Code Civ. Proc. §437c(f)(1). "A motion for summary adjudication shall be granted only if it completely disposes of a cause of action, an affirmative defense, a claim for damages, or an issue of duty." *Id.*

Discussion

First, Second, and Third Causes of Action for Violation of the Song-Beverly Act

To bring a claim under the Song-Beverly Consumer Warranty Act (the Act) (Civ. Code, § 1790 et seq.), the plaintiff must be the buyer of the subject vehicle. *Towns v. Hyundai Motor Am.*, 117 Cal.App.5th 311 (2025), as modified on denial of reh'g Jan. 16, 2026 ("a person who is not a buyer does not have standing to pursue a claim under the [Song-Beverly] Act").

The Act defines a buyer as "any individual who buys consumer goods from a person engaged in the business of manufacturing, distributing, or selling consumer goods at retail. As used in this subdivision, "person" means any individual, partnership, corporation, limited liability company, association, or other legal entity that engages in any of these businesses." Civil Code Section 1791(b).

A new car or "[n]ew motor vehicle" means a new motor vehicle that is bought or used primarily for personal, family, or household purposes. 'New motor vehicle' also means a new motor vehicle with a gross vehicle weight under 10,000 pounds that is bought or used primarily for business purposes by a person, including a partnership, limited liability company, corporation, association, or

any other legal entity, to which not more than five motor vehicles are registered in this state.” (Ca Civ § 1793.22(e)(2) (emphasis added).)

There are two types of plaintiffs who have statutory standing to bring Song-Beverly claims under its provisions related to a “new motor vehicle”: (1) an individual whose vehicle is “bought or used primarily for personal, family, or household purposes”; and (2) an individual or legal entity (e.g., a corporation) who has “not more than five motor vehicles ... registered in this state” and whose vehicle is bought or used primarily for business purposes with a gross weight “under 10,000 pounds.” *Park City Services v. Ford Motor Co.* (2006) 144 Cal.App.4th 295, 306.

Defendant contends that Plaintiff cannot prevail on his Song-Beverly claims because he is not the purchaser of the vehicle and the vehicle was not purchased for personal use. Rather, Defendant contends, the vehicle was purchased by Business Communications Solutions, Inc., which Defendant describes as the “primary purchaser,” for commercial use.

Purchase/ownership of the vehicle

To support its contention that the corporation purchased the vehicle, Defendant points to the retail sales installment contract (“RISC”) and the vehicle registration.

The RISC shows the corporation and Plaintiff both as purchasers. The corporation is named first, but Plaintiff is name as “co-buyer.” [Defendant’s COE (ROA #103), Ex. 2.] The vehicle registration shows both the corporation and Plaintiff hold title to the vehicle. [*Id.*, Ex. 5. *See also* Goethals Decl. (ROA #205), Ex. F.]

Defendant also points to deposition testimony by Plaintiff that he does not recall who paid the down payment. [Defendant’s COE, Ex. 3 (Plaintiff Depo.) at 91. Further, Defendant contends that the corporation took at the loan to purchase the vehicle. [*Id.*, Ex. 4 (account history in the name of the corporation).] But Plaintiff presents evidence that the loan approval was in as to both the corporation and Plaintiff. [Goethals Decl. (ROA # 205), Ex. D.] Additionally, the car insurance documents show both as insured drivers. [*Id.*, Ex. G.]

Finally, the RISC indicates that the vehicle was purchase for business use. In rebuttal, Plaintiff presents deposition testimony by finance director at BMW Irvine that the section of the RISC marked “business or commercial” is automatically checked when one of the purchasers of a vehicle is a business, and that this cannot be changed even if a buyer says otherwise. [*Id.*, Ex. H.] In his

deposition, Plaintiff testified to personal use. [Defendant's COE, Ex. 3 at 22:13-19; Goethals Decl., ¶9 (declaring Plaintiff is the primary driver of the vehicle).]

With the totality of the evidence presented, there is a triable issue of fact whether Plaintiff is a purchaser of the vehicle. The same is true for whether the vehicle was purchased for commercial or personal use.

Defendant notes in its separate statement that the corporation is not a party to this action. But only in reply does it expressly argue that the corporation is a necessary party. [Reply (ROA # 207) at 3-4.] Plaintiff has already filed a motion to amend the complaint to add the corporation. [Motion to Amend (ROA ## 161, 168 Ex. 2.)]

Based on the above, Defendant's motion for summary judgment and its motion for summary adjudication as to the first, second, and third causes of action are denied.

Fourth Cause of Action for Violation of the Magnuson-Moss Warranty Act

The Magnuson-Moss Warranty Act defines a "consumer" as "a buyer (other than for purposes of resale) of any consumer product, any person to whom such product is transferred during the duration of an implied or written warranty (or service contract) applicable to the product, and any other person who is entitled by the terms of such warranty (or service contract) or under applicable State law to enforce against the warrantor (or service contractor) the obligations of the warranty (or service contract)." Magnuson-Moss Warranty Act, 15 U.S.C. § 2301(3).

On the same evidence as discussed above, Defendant contends that Plaintiff is not the buyer or owner of the vehicle and thus is not a "consumer" with standing to bring a claim under the Magnuson-Moss Warranty Act. But for the reasons, and on the evidence, discussed above, there is a triable issue of fact on these issues. Accordingly, summary adjudication of this cause of action is denied.

Fifth Cause of Action for Violation of the Consumer Legal Remedies Act

In addition to repeating its contention regarding Plaintiff's status as a buyer of the vehicle, for this cause of action Defendant argues that Plaintiff cannot sustain a claim for violation of the Consumer Legal Remedies Act ("CLRA") because Plaintiff did not buy the vehicle from Defendant but from a dealer.

According to the RISC, the seller of the vehicle was Irvine BMW. [Goethals Decl., ¶ 3 and Exs. A-C.] Defendant has made a prima

		facie showing that it was not the seller of the vehicle. Civ. Code §§ 1770, 1780, 1782. In opposition, Plaintiff does not address this point but only argues that Defendant’s attacks all fail for the same reason its attacks on the first through third causes of action fail. This does not address the argument specific to the CLRA claim that <i>Defendant</i> was not the seller regardless of who was the buyer. Defendant’s motion for summary adjudication of Plaintiff’s fifth cause of action is granted.
11.	2024-1408350 Guo vs. Je Beaute, Inc.	The motion for summary judgment by Defendant Mishell Hsu (“Hsu”) on the Complaint filed by Plaintiff Jingyi Guo (“Plaintiff”) is granted. The Court declines to consider Hsu’s alternative motion for summary adjudication. The motion for summary judgment by Defendant Fei He on Plaintiff’s Complaint is vacated. <u>HSU MSJ/MSA</u> As an initial matter, the Court notes Hsu did not properly serve the notice and moving papers on Plaintiff. (Cal. Rules of Ct., Rule 2.251(c)(3)(B).) There is no showing that Plaintiff affirmatively consented to electronic service. However, Plaintiff served and filed a timely opposition without objecting to service. In addition, Hsu did not serve the notice and moving papers on Cross-Defendant Sanqian Zhang (“Zhang”), who already appeared by the time Hsu filed this motion. However, the Court exercises its discretion to proceed with the merits of the motion. (<i>Caruthers Bldg. Co. v. Johnson</i> (1916) 174 Cal. 20, 24 [“The failure to serve a given party will not deprive the court of jurisdiction to grant the motion in so far as it can be granted without affecting the rights of the party not served.”].) The Court also notes Plaintiff’s electronic service of Plaintiff’s opposition on Zhang, a self-represented litigant, is improper. (Cal. Rules of Ct., Rule 2.251(c)(3)(B).) The Court exercises its discretion to consider Plaintiff’s opposition despite improper service on Zhang. (<i>Caruthers Bldg. Co. v. Johnson</i>, 174 Cal. at 24.) The Court further notes Hsu did not properly serve Hsu’s reply on Plaintiff and did not serve Zhang. (Cal. Rules of Ct., Rule 2.251(c)(3)(B).) The Court declines to consider the papers Hsu filed in support of Hsu’s reply. Plaintiff did not file a separate statement in opposition to the motion. “The opposition papers shall include a separate statement

that responds to each of the material facts contended by the moving party to be undisputed, indicating if the opposing party agrees or disagrees that those facts are undisputed.” (Code Civ. Proc., § 437c, subd. (b)(3); see, Cal. Rules of Ct., Rule 3.1350(e)(2) [The opposition must include a separate statement in opposition to the motion for summary judgment or summary adjudication or both.].) “Failure to comply with this requirement of a separate statement may constitute a sufficient ground, in the court’s discretion, for granting the motion.” (Code Civ. Proc., § 437c, subd. (b)(3).)

“The separate statement is not merely a technical requirement, it is an indispensable part of the summary judgment or adjudication process. ‘Separate statements are required not to satisfy a sadistic urge to torment lawyers, but rather to afford due process to opposing parties and to permit trial courts to expeditiously review complex motions for ... summary judgment to determine quickly and efficiently whether material facts are disputed.’ (*United Community Church v. Garcin* (1991) 231 Cal.App.3d 327, 335 [282 Cal.Rptr. 368].)” (*Kojababian v. Genuine Home Loans, Inc.* (2009) 174 Cal.App.4th 408, 415-416, citing *Whitehead v. Habig* (2008) 163 Cal.App.4th 896, 902.)

The Court exercises its discretion to consider the evidence Plaintiff submitted in opposition to Hsu’s motion despite the lack of a separate statement.

The Court also notes Plaintiff filed a request to continue the hearing on this motion on April 10, 2026. (Request to Continue Summary Judgment Hearing, ROA No. 305.) Plaintiff did not seek *ex parte* relief. Nor did Plaintiff request additional time in Plaintiff’s declaration filed in opposition to this motion on May 20, 2026, over a month after Plaintiff’s request for additional time. Based on Plaintiff’s opposition and lack of any request to continue the hearing in the opposition served and filed over a month later, it no longer appears Plaintiff needs additional time to complete discovery to oppose Hsu’s motion.

General legal authority

In both summary judgment and summary adjudication proceedings, the pleadings determine the scope of the relevant issues. (*Port Medical Wellness, Inc. v. Connecticut General Life Ins. Co.* (2018) 24 Cal.App.5th 153, 169.) The standard governing motions for summary judgment and summary adjudication is settled. “[F]rom commencement to conclusion, the party moving for summary judgment bears the burden of persuasion that there is no triable issue of material fact and that he is entitled to judgment as a matter of law.” (*Aguiar v. Atlantic Richfield Co.* (2001) 25 Cal.4th 826,

850.) A “party moving for summary judgment bears an initial burden of production to make a prima facie showing of the nonexistence of any triable issue of material fact. . . .” (*Ibid.*) “A prima facie showing is one that is sufficient to support the position of the party in question.” (*Id.* at p. 851.) “A court identifies the issues framed by the pleadings, determines whether the moving party’s showing has established facts which negate the opponent’s claim and justify a judgment in the moving party’s favor, and if the summary judgment motion is meritorious on its face, the court will look to whether the opposition demonstrates there are triable, material factual issues.” (*Clark v. Baxter Healthcare Corp.* (2000) 83 Cal.App.4th 1048, 1054.) The opposing party must show by reference to specific facts the existence of a triable issue as to that cause of action. (*Aguilar v. Atlantic Richfield Co.*, *supra*, 25 Cal.4th at p. 850.)

“A party may move for summary adjudication as to one or more causes of action within an action, one or more affirmative defenses, one or more claims for damages, or one or more issues of duty, if the party contends that the cause of action has no merit, that there is no affirmative defense to the cause of action, that there is no merit to an affirmative defense as to any cause of action, that there is no merit to a claim for damages, as specified in Section 3294 of the Civil Code, or that one or more defendants either owed or did not owe a duty to the plaintiff or plaintiffs. A motion for summary adjudication shall be granted only if it completely disposes of a cause of action, an affirmative defense, a claim for damages, or an issue of duty.” (Code Civ. Proc., § 437c, subd. (f)(1).)

A cause of action cannot be established if the undisputed facts presented by the defendant prove the contrary of the plaintiff’s allegations as a matter of law. (*Brantley v. Pisaro* (1996) 42 Cal.App.4th 1591, 1597.) Alternatively, a moving defendant can show that a cause of action cannot be established by submitting evidence, such as discovery admissions and responses, that plaintiff does not have and cannot reasonably obtain evidence to establish an essential element of his cause of action. (*Aguilar v. Atlantic Richfield Co.*, *supra*, 25 Cal.4th at pp. 854-855; *Union Bank v. Superior Court* (1995) 31 Cal.App.4th 573, 590 [finding moving defendant may show plaintiff’s lack of evidence by factually devoid discovery responses after plaintiff has had adequate opportunity for discovery]; *see Sheiding v. Dinwiddie Constr. Co.* (1999) 69 Cal.App.4th 64, 80-81 [finding Union Bank rule only applies where discovery requests are broad enough to elicit all such information].)

Once a defendant meets its prima facie showing, the burden shifts to the plaintiff to show by reference to specific facts the existence of a triable issue as to that affirmative defense or cause of action.

(*Aguilar v. Atlantic Richfield Co.*, *supra*, 25 Cal.4th at p. 850.) To meet this burden, the plaintiff must present substantial and admissible evidence creating a triable issue. (*Sangster v. Paetkau* (1998) 68 Cal.App.4th 151, 163.) Theoretical, imaginative, or speculative submissions are insufficient to stave off summary judgment. (*Doe v. Salesian Society* (2008) 159 Cal.App.4th 474, 481; *Bushling v. Fremont Med. Center* (2004) 117 Cal.App.4th 493, 510.)

Merits

Plaintiff's complaint alleges the following causes of action against Hsu, as Doe defendant number 3: FEHA – sex harassment; FEHA – sex discrimination; FEHA – retaliation; FEHA – failure to take all steps necessary to stop discrimination, harassment, and/or retaliation; wrongful termination in violation of public policy; whistleblower retaliation; negligent failure of employer to establish FEHA compliant policies and procedures and to appropriately enforce FEHA provision; negligent failure of employer to investigate, supervise or prevent FEHA violations from occurring; and negligent hiring, training, supervision.

Hsu contends Hsu is entitled to summary judgment on the following three grounds:

1. There is no triable issue of material fact that Guo has failed to exhaust administrative remedy as to Mishell Hsu required by the 1st through 4th and 7th through 9th causes of action for FEHA claims or FEHA violations;
2. There is no triable issue of material fact that Hsu is not Guo's employer and cannot be liable for 1st through 4th and 7th through 9th causes of action for FEHA claims or FEHA violations;
3. Hsu is not an employer, and she cannot be liable for the 5th cause of action for wrongful termination in violation of public policy and 6th cause of action for whistleblowing retaliation.

FEHA claims alleged in the first through fourth and seventh through ninth causes of action

“Any person claiming to be aggrieved by an alleged unlawful practice may file with the department a verified complaint, in writing, that shall state the name and address of the person, employer, labor organization, or employment agency alleged to have committed the unlawful practice complained of, and that shall set forth the particulars thereof and contain other information as may be required by the department. The director or the director's authorized representative may in like manner, on that person's own motion, make, sign, and file a complaint.” (Gov. Code, § 12960.)

Government code “section 12960 clearly mandates that aggrieved persons set forth in their [administrative] complaint the names of *persons* alleged to have committed the unlawful discrimination. In order to bring a civil lawsuit under the FEHA, the defendants must have been named in the caption or body of the [administrative] charge.” (*Cole v. Antelope Valley Union High School Dist.* (1996) 47 Cal.App.4th 1505, 1515.) A plaintiff is barred from suing individual defendants for failing to name them in the DFEH charge.” (*Id.*, at 1511.)

Hsu met Hsu’s initial burden to show Plaintiff is barred from bringing the first through fourth and seventh through ninth causes of action against Hsu. (Separate Statement, ROA No. 208, Hsu’s Undisputed Material Fact [“DMF”] No. 8 and 9.) The Court notes Plaintiff was represented by counsel at the time Plaintiff filed the administrative complaint and amended administrative complaint.

Plaintiff did not oppose Hsu’s motion on this ground. Plaintiff did not raise a triable issue of material fact as to whether Hsu was named in the administrative complaint or amended administrative complaint.

Because Hsu met her initial burden on the first ground, the Court declines to consider whether Hsu met her initial burden to show Hsu is not liable for the FEHA claims (the same causes of action above) because Hsu is not Plaintiff’s employer.

Fifth and sixth causes of action

Plaintiff’s fifth cause of action for wrongful termination in violation of public policy alleges Plaintiff was wrongfully terminated in violation of public policy in relation for engaging in protected activity, which “is a direct violation of public policy embodied in FEHA.” (Complaint, ¶¶ 57 and 58.) Plaintiff’s sixth cause of action for whistleblower retaliation alleges JE Beate retaliated against Plaintiff by wrongfully terminating her employment in violation of Labor Code section 1102.5. (Complaint, ¶¶ 61 and 62.) Plaintiff refers to Labor Code section 1102.5, subdivision (b) in the complaint. (*Id.*, ¶ 60.)

Individual supervisors may not be sued for a cause of action for discharge in violation of public policy. (*Reno v. Baird*, 18 Cal.4th at 663; *see, Le Bourgeois v. Fireplace Manufacturers, Inc.* (1998) 68 Cal.App.4th 1049, 1052 [supervisory personnel cannot be sued as individuals for wrongful discharge in violation of fundamental public policy where the basis for the cause of action is alleged discrimination under California’s Fair Employment and Housing

Act (FEHA), Government Code section 12900 et seq.”].) Subject to exceptions not applicable here, an employer “includes any person regularly employing five or more persons, or any person acting as an agent of an employer, directly or indirectly...” (Gov. Code, § 12926, subd. (d).)

Labor Code section 1102.5, subdivision (b) provides as follows:

An employer, or any person acting on behalf of the employer, shall not retaliate against an employee for disclosing information, or because the employer believes that the employee disclosed or may disclose information, to a government or law enforcement agency, to a person with authority over the employee or another employee who has the authority to investigate, discover, or correct the violation or noncompliance, or for providing information to, or testifying before, any public body conducting an investigation, hearing, or inquiry, if the employee has reasonable cause to believe that the information discloses a violation of state or federal statute, or a violation of or noncompliance with a local, state, or federal rule or regulation, regardless of whether disclosing the information is part of the employee's job duties.
(Lab. Code, § 1102.5, subd. (b).)

A “*Tameny* cause of action for wrongful termination, or a claim of retaliation, lies only against the employer, not against the supervisor through whom the employer commits the tort.” (*Lloyd v. County of Los Angeles* (2009) 172 Cal.App.4th 320, 330; *Khajavi v. Feather River Anesthesia Medical Group* (2000) 84 Cal.App.4th 32, 53 [“As a matter of law, only an employer can be liable for the tort of wrongful discharge in violation of public policy.”].)

Hsu met her initial burden to show she is an employee of Je Beaute and not Plaintiff’s employer during the period of Plaintiff’s employment. (DMF No. 10 and 12.) Plaintiff does not submit any evidence to raise a triable issue of material fact as to whether Hsu was her employer.

Accordingly, Hsu’s motion for summary judgment is granted. The Court declines to consider Hsu’s alternative motion for summary adjudication.

He MSJ

Plaintiff dismissed He without prejudice on May 19, 2026. (Request for Dismissal, ROA No. 375.) He’s motion is vacated.

		Hsu shall give notice.
12.	2025-1513210 Zapata vs. General Motors LLC	Case Management Conference Plaintiff Mercedes Zapata's motion for leave to file a First Amended Complaint is granted. The court may, in furtherance of justice, and on any terms as may be proper, allow a party to amend any pleading or proceeding by adding or striking out the name of any party, or by correcting a mistake in the name of a party, or a mistake in any other respect; and may, upon like terms, enlarge the time for answer or demurrer. (Code Civ. Proc. § 473(a)(1).) The court may likewise, in its discretion, after notice to the adverse party, allow, upon any terms as may be just, an amendment to any pleading or proceeding in other particulars; and may upon like terms allow an answer to be made after the time limited by this code. (Code Civ. Proc. § 473(a)(1).) Additionally, any judge, at any time before or after commencement of trial, in the furtherance of justice, and upon such terms as may be proper, may allow the amendment of any pleading or pretrial conference order. (Code Civ. Proc. § 576.) Plaintiff seeks leave to file a First Amended Complaint to add a cause of action for violation of the Song-Beverly Act. Plaintiff states that the need to amend arose because discovery received on 12/15/25 revealed that Plaintiff's vehicle qualifies as a new motor vehicle under the Song-Beverly Act. (Valitskaya Decl. ¶ 3). Plaintiff attaches the proposed First Amended Complainant (Ex. 1) to the motion. Plaintiff's motion complies with CRC, Rule 3.1324(b). The Court does not find Defendant's arguments in opposition persuasive. No cognizable prejudice has been shown. As a result, the motion is granted. Plaintiff shall file and serve her First Amended Complaint no later than Friday, June 12, 2026, pursuant to the Code of Civil Procedure. Plaintiff shall give notice.
13.	2025-1482423 Ferrino vs. City of Anaheim	Case Management Conference

Defendant City of Anaheim’s Demurrer to Plaintiffs’ First Amended Complaint is sustained in part and overruled in part. The demurrer to the first cause of action for wrongful death is sustained. The demurrer to the second cause of action for dangerous condition of public property is overruled.

Defendant’s request for judicial notice is granted. (Evid. Code, § 452, subd. (b), (c), and (h); *People v. Bratton* (2023) 95 Cal.App.5th 1100, 1105.)

1st COA for Wrongful Death

The Court sustains the demurrer to the wrongful death claim, because it is completely redundant of the claim for dangerous condition of public property. (See *Palm Springs Villas II Homeowners Assn., Inc. v. Parth* (2016) 248 Cal.App.4th 268, 290 [cause of action that is completely duplicative of another cause of action and adds nothing to complaint by way of fact or theory of recovery may be subject to demurrer].) In their opposition, Plaintiffs argue that the wrongful death claim “properly alleges Defendant’s liability for wrongful death under section 835,” as such, “it is immaterial if the FAC supposedly improperly alleges liability under section 815.2.” (Opp’n at p. 14.) This argument is not persuasive because, if Plaintiffs are relying on section 835 for liability, then there really is no apparent reason for the court to permit a redundant claim. Further, Plaintiffs have not refuted Defendant’s authority that it cannot be held vicariously liable for property defects. (See Dem. at p. 14, citing *Van Kempen v. Hayward Area Park etc. Dist.* (1972) 23 Cal.App.3d 822, 825 [“public entity liability for property defects is not governed by the general rule of vicarious liability provided in section 815.2”].)

Thus, unless Plaintiffs can show how this defect can be cured, the Court is inclined to sustain the demurrer to the wrongful death claim without leave to amend.

2nd COA for Dangerous Condition of Public Property

Under the Government Claims Act, “there is no common law tort liability for public entities in California; instead, such liability must be based on statute.” (*Guzman v. County of Monterey* (2009) 46 Cal.4th 887, 897, citing Gov. Code, § 815, subd. (a).) Here, Plaintiffs allege Defendant is liable for having created “a dangerous condition under Government Code section 835.” (FAC at ¶ 21.)

Government Code section 835 provides, in relevant part, that: “Except as provided by statute, a public entity is liable for injury caused by a dangerous condition of its property if the plaintiff establishes that the property was in a dangerous condition at the time of the injury, that the injury was proximately caused by the

dangerous condition, that the dangerous condition created a reasonably foreseeable risk of the kind of injury which was incurred, and ... [the] public entity had actual or constructive notice of the dangerous condition under Section 835.2 a sufficient time prior to the injury to have taken measures to protect against the dangerous condition.” (Gov. Code, § 835.)

Defendant contends it is immune under Government Code section 831.4, which provides:

A public entity, public employee, or a grantor of a public easement to a public entity for any of the following purposes, is not liable for an injury caused by a condition of:

(a) Any unpaved road which provides access to fishing, hunting, camping, hiking, riding, including animal and all types of vehicular riding, water sports, recreational or scenic areas and which is not a (1) city street or highway or (2) county, state or federal highway or (3) public street or highway of a joint highway district, boulevard district, bridge and highway district or similar district formed for the improvement or building of public streets or highways.

(b) Any trail used for the above purposes.

(c) Any paved trail, walkway, path, or sidewalk on an easement of way which has been granted to a public entity, which easement provides access to any unimproved property, so long as such public entity shall reasonably attempt to provide adequate warnings of the existence of any condition of the paved trail, walkway, path, or sidewalk which constitutes a hazard to health or safety. Warnings required by this subdivision shall only be required where pathways are paved, and such requirement shall not be construed to be a standard of care for any unpaved pathways or roads. (Gov. Code, § 831.4.)

Defendant argues that it cannot be reasonably disputed that the decedent was on a “recreational trail” (within the meaning of section 831.4) when Cross-Defendant lost control and crashed into her while she was jogging on the trail. And, although Plaintiffs point to the design of the traffic intersection as the “dangerous condition,” that trail immunity applies because the trail’s “location is as much a characteristic of a trail as design.” (Dem. at p. 4.) Further, when such immunity applies, it is absolute. (Dem. at pp. 5-6, citing *Nealy v. County of Orange* (2020) 54 Cal.App.5th 594; *Leyva v. Crockett & Company, Inc.* (2017) 7 Cal.App.5th 1105, 1109.)

Plaintiffs, on the other hand, contend that trail immunity does not apply, because “a plain reading of Government Code section 831.4 makes clear that Plaintiffs’ FAC does not trigger trail immunity.” (Opp’n at p. 9.) Specifically, Plaintiffs assert that, “There are no

		allegations in the FAC which suggest that any condition of the Trail proximately caused, played a substantial factor in, or contributed to Rangel's actions, Decedent's injuries, or Decedent's death," and that, to find otherwise, the court would purportedly have to "engage in a fact-intensive inquiry balancing the conditions at the Subject Intersection against the location, integrity, or conditions of the Trail..." (Opp'n at p. 10.) Courts have taken an expansive reading of "caused by a condition of [a trail]." Multiple courts have found that the <i>location</i> of the trail is one of those "conditions." (See, e.g., <i>Nealy v. County of Orange</i> (2020) 54 Cal.App.5th 594, 603, citing <i>Leyva v. Crockett & Co., Inc.</i> (2017) 7 Cal.App.5th 1105, 1109, italics added "[L]ocation, no less than design, is an integral feature of a trail, and both must be immunized for the same reasons.' [Citation.] This immunity is absolute."); <i>Amberger-Warren v. City of Piedmont</i> (2006) 143 Cal.App.4th 1074, 1085 ["Plaintiff is in effect arguing that the trail is situated in a dangerous location ... but location, no less than design, is an integral feature of a trail, and both must be immunized for the same reasons"].) Nevertheless, the issue is not as straightforward as the quoted language above suggests. <i>Levy</i>, <i>Amberger-Warren</i>, and <i>Reed</i> are representative of cases where courts found trail immunity exists, because the "injury-producing location" was <u>a condition of the trail</u>. On the other hand, <i>Toeppe</i> and <i>Garcia</i> are representative of cases where courts found trail immunity did not exist, because the dangerous condition existed <u>without regard to the location of an adjacent trail</u>. Here, it would be premature for the Court to determine whether the allegedly "dangerous condition" of the subject intersection would exist without regard to the location of the trail. The facts alleged in the Complaint, when taken as true, do not show that the trail immunity applies <i>as a matter of law</i>. Accordingly, the demurrer to the claim shall be overruled. Unless Plaintiffs meet their burden of showing that leave should be given to amend their wrongful death claim, the Court intends to order Defendant to answer the remaining claim for dangerous condition of public property.
15.	2025-1470204 Allied Public Adjusters, Inc. vs. G.D. Baca, Inc.	Case Management Conference The general demurrer of defendants Gary Baca and G.D. Baca, Inc., to all three causes of action in the second amended complaint of plaintiff Allied Public Adjusters, Inc., is SUSTAINED with 20 days' leave to amend.

Although their notice of motion/demurrer does not comply with subdivision (a) of CRC 3.1320, defendants are demurring generally and specially on the ground of uncertainty to all three causes of action plaintiff's SAC, which are for breach of contract, fraud, and violation of Bus. & Prof. Code section 17200. Defendants contend that all three causes of action are defective because they are based on an unenforceable contract provision for exclusivity/non-competition. Plaintiff opposes the demurrer.

In the introductory portion of the second amended complaint, plaintiff alleges that, on or around January 10, 2025, plaintiff and defendants entered into a written agreement whereby defendants would provide consulting services for plaintiff to develop an outside sales department in exchange for payment. (SAC, ¶ 8.) Plaintiff alleges that the term of the contract would be 12 consecutive months, and total payment would be \$300,000. (SAC, ¶ 8.) Plaintiff attaches a copy of the contract to the SAC as Exhibit A.

Plaintiff then quotes section 1.3 of the contract, which, among other things, states that, with the exception of pending claims, the Service Provider, i.e., defendants, "shall not perform similar or identical services to any other or different person or entity in the insurance adjusting industry or in competition with [plaintiff], or act itself as a public insurance adjuster, or in any manner competitive to [plaintiff]" and that "Service Provider shall perform the Services exclusively for and on behalf of [plaintiff] pursuant to the terms of this Agreement." (SAC, ¶ 9.)

Plaintiff alleges that plaintiff made its first payment to defendants shortly after execution of the contract and that defendants then asked that execution of the services be delayed so they could act as public insurance adjusters with respect to wildfire claims in Southern California. (SAC, ¶ 12.) Plaintiff alleges that, by not disclosing their competing engagements, not referring the claims to plaintiff, and diverting them for their own benefit, defendants "directly competed with Plaintiff during the Contract term, performed identical services in the insurance adjusting industry, and breached both the exclusivity portion of Section 1.3 and the referral requirements of the Contract, all while accepting compensation from Plaintiff and delaying performance of their contractual obligations." (SAC, ¶ 13.)

Plaintiff's first cause of action for breach of contract is short, i.e., it consists of four paragraphs, including one that incorporates the prior allegations by reference. In this cause of action, plaintiff alleges that defendants breached the contract in two ways: (1) by failing to perform the consulting and development services; and (2)

by engaging as public insurance adjusters in direct competition with plaintiff. (SAC, ¶ 16.)

Defendants contend that this cause of action fails because, among other things, the restraint on competition in section 1.3 of the complaint is unenforceable under Bus. & Prof. Code § 16600. Subdivision (a) of section 16600 provides that “[e]xcept as provided in this chapter, every contract by which anyone is restrained from engaging in a lawful profession, trade, or business of any kind is to that extent void.” Defendants therefore contend that they could not have breached the agreement by engaging in work as public insurance adjusters as alleged.

In opposing the demurrer, plaintiff contends that the restriction on competition in the agreement is permitted because the restriction was only for the term of the contract. It also contends that because defendants were providing services for it and given access to its trade secrets and other proprietary information, it should be expected to have defendants’ loyalty. In making this argument, plaintiff cites cases involving employers and employees, including Techno Lite, Inc. v. Emcod (2020) 44 Cal.App.5th 462, which stated the following at p. 471:

“Business and Professions Code section 16600 has consistently been interpreted as invalidating any employment agreement that unreasonably interferes with an employee’s ability to compete with an employer after his or her employment ends. [Citation.] However, the statute does not affect limitations on an employee’s conduct or duties while employed. ‘While California law does permit an employee to seek other employment and even to make some “preparations to compete” before resigning [citation], California law does not authorize an employee to transfer his loyalty to a competitor. During the term of employment, an employer is entitled to its employees’ “undivided loyalty.” [Citation.]’ [Citation.]” [Citation.]

Plaintiff acknowledges that defendants are not employees but independent contractors and contends that it is a difference without distinction, but this is inaccurate. According to Ixchel Pharma, LLC v. Biogen, Inc. (2020) 9 Cal.5th 1130, which is cited by defendants in both their moving and reply papers, section 16600 is applicable to business contracts. Specifically, that case stated the following at pp. 1149-1150:

As an initial matter, we agree with the parties that section 16600 applies to business contracts. The chapter of the Business and Professions Code containing section 16600

excepts from section 16600's coverage certain noncompetition agreements upon the sale of goodwill or of ownership interest in a business [citation] and upon the dissolution or dissociation from a partnership [citation] or limited liability corporation [citation]. If section 16600 did not apply to business contracts, these exceptions would be unnecessary. Indeed, California courts have frequently analyzed whether contracts involving business dealings are void under section 16600. [Citations.]

Thus, as defendants contend, plaintiff cannot enforce the restraint on competition in the agreement and it cannot serve as the basis of the purported breach.

To the extent that plaintiff contends that the contract was breached because defendants failed to perform the consulting and development services, it has not alleged facts supporting this conclusion. Plaintiff has only alleged that defendants asked that performance be delayed.

Plaintiff's second cause of action for fraud is nine paragraphs long, including a paragraph that incorporates by reference all prior allegations. Defendants contend that this cause of action is not pled with the specificity required for a fraud claim. They also contend that the cause of action does not contain facts showing that they did not intend to perform their promises when they made them or that plaintiff reasonably relied on the promise.

Defendants are correct. Plaintiff alleges conclusions instead of facts. It simply alleges that "[a]t the times that Defendants made the above-described representations to Plaintiff, Defendants had no intention of performing those promises" (SAC, ¶ 19) and that "[t]he promises were made by Defendants with the intent to induce Plaintiff to enter into the Contract, from which Defendants could gain profits and benefits for themselves" (SAC, ¶ 21). These allegations are insufficient to support a claim for fraud against defendants.

Plaintiff's third cause of action for violation of Bus. & Prof. Code § 17200 seeks injunctive relief against defendants as well as disgorgement and restitution of revenues, but plaintiff never identifies the conduct that amounts to the unlawful business practices. Rather, after describing unfair business competition in general terms (see SAC at ¶¶ 28-32), plaintiff simply alleges that defendants violated the UCL "through their unlawful, unfair, and fraudulent business practices" and that their actions "are ongoing and present a continuing threat that Plaintiff and the public will continue to be harmed by these unfair business practices" (SAC, ¶

		33.) These allegations are insufficient to show that defendants engaged in a violation of the Unlawful Competition Law. The demurrer as to all three causes of action is sustained with 20 days' leave to amend. Counsel for the parties are reminded to follow the California Rules of Court when submitting pleadings and motions.
	2023-1368679 Deleon vs. FCA US, LLC.	The Court notes no oppositions filed to any defense MIL. The Court rules as follows: Defense MIL 1: Granted. Defense MIL 2: Granted. Defense MIL 3: Granted in part; plaintiff may not rely on unreported complaints as repair opportunities, without prejudice to specific trial objections. Defense MIL 4: Granted. Defense MIL 5: Granted subject to the Evidence Code and Code of Civil Procedure and subject to offers of proof. Defense MIL 6: Granted in part; no hearsay complaints, internet postings, or other lawsuits absent independent admissibility and foundation. Defense MIL 7: Denied without prejudice, or granted only in the limited manner discussed above. Defense MIL 8: Granted in part; post-warranty complaints or repairs are excluded unless plaintiff establishes relevance to a defect first presented during the warranty period.
	2024-1429127 Gonzalez vs. Sewcalpros, LLC	Defense MIL No. 1 is GRANTED, without objection. Pursuant to Civil Code section 3295(d), evidence of defendant's profits, net worth, financial condition, or similar wealth evidence shall not be introduced unless and until the trier of fact first returns a verdict awarding compensatory damages and finds by clear and convincing evidence that defendant acted with malice, oppression, or fraud. Any issue concerning the presentation of financial-condition evidence shall be heard outside the presence of the jury before such evidence is offered. Defense MIL No. 2 is GRANTED IN PART and DENIED IN PART. Plaintiff may not introduce at trial any document that was responsive to defendant's discovery requests but was not produced during discovery unless plaintiff first establishes outside the presence of the jury that the failure to produce was substantially justified or harmless. Defendant's request for a blanket exclusion order as to broad categories of evidence is denied without prejudice. Any disputed item shall be addressed under Evidence Code section 402 before being shown to the jury. Defense MIL No. 3 is DENIED IN PART, WITHOUT PREJUDICE. While Plaintiff may not introduce hearsay,

speculation, or testimony lacking personal knowledge concerning the pregnancy status of other employees, the Court declines to issue a blanket pretrial order excluding all evidence concerning other employees' pregnancies or treatment. The Court can conceive of myriad examples of such evidence that might be both admissible and relevant, or inadmissible and irrelevant. But on the record before it, the Court is in the dark.

In its current form, MIL # 3 is overbroad. Specific objections may be raised at trial. The admissibility of comparator or "me too" evidence will be determined upon an adequate offer of proof and appropriate foundation.

The Court will hear from plaintiff's counsel concerning allegations of fabricated case quotations as noted in the reply, ROA 94, pages 3-4.

Defense MIL No. 4 is GRANTED, without objection. Plaintiff may not seek recovery for, introduce evidence of, or argue that Defendant is liable for alleged physical injuries or medical conditions arising from her employment, including but not limited to arthritis, back pain, TMJ, or similar industrial injuries. Such claims are outside the scope of the pleadings and, to the extent they arise from workplace injuries, are subject to the workers' compensation exclusive-remedy doctrine.

Nothing in this ruling precludes otherwise admissible evidence concerning emotional distress or physical manifestations of emotional distress, provided such evidence is relevant to claims and damages properly at issue in this action, and whose admissibility is determined outside the presence of the jury.

Defense MIL No. 5 is GRANTED IN PART and DENIED IN PART. Plaintiff may testify regarding her pregnancies, prior miscarriages, physical symptoms, emotional distress, communications with medical providers, medical leave, work restrictions communicated to her, and accommodations requested from Defendant.

Plaintiff herself may not offer medical diagnoses, medical causation opinions, or opinions that workplace stress caused, contributed to, or rendered her pregnancy "high-risk," caused pregnancy complications, or otherwise created specific medical conditions.

Specific objections may be raised at trial as the testimony develops.

The Court will hear from plaintiff's counsel regarding the authorities cited in the opposition and the allegations raised in the reply.

Defense MIL No. 6 is UNDER SUBMISISON. Defendant seeks a blanket order excluding a document entitled “Situation With Berenice – 3 Options” on the ground that Plaintiff allegedly obtained it from the desk of a company manager without authorization. On the present record, Defendant has not established that the *way* Plaintiff obtained the document renders it categorically inadmissible. While Defendant cites to *Pillsbury, Madison & Sutro v. Schectman* (1997) 55 Cal.App.4th 1279, 1289 for the notion that evidence the likes of which form the basis of MIL # 6 “*risks* being found to have violated protected rights” (emphasis added), it does not stand as a basis for prophylactic exclusion depriving a court of its general discretionary authority.

The document appears potentially relevant to issues concerning Defendant’s decision-making process regarding Plaintiff’s employment.

The Court expresses no opinion regarding authenticity, hearsay, foundation, completeness, or other specific evidentiary objections. The Court determines that a 402 hearing outside the presence of the jury should be conducted prior to any reference the document in question. At said hearing, the Court offers the following non-exclusive list of questions it has, and the answers to which will enable it to rule:

Who created it?
When?
For what purpose?
Is it a SewCalPros document?
Was it actually found on Ashley Dennis’s desk?
Under what specific circumstances did plaintiff acquire it?
Is the exhibit complete?
Can it be authenticated?
What applicable hearsay exceptions, if any, does Plaintiff rely upon to justify the document’s admission?

The Court will hear from plaintiff’s counsel regarding the authorities cited in the opposition and the allegations raised in the reply.